Introduction

Joe Coors may pursue two intentional tort actions against Johnny Walker in Maryland which are assault and battery, based on the specific elements that led to Coors' injury. Other possibilities that Coors may pursue but may not be strong enough in court are intentional infliction of emotional distress and false imprisonment. This analysis will demonstrate intentional tort claims in Maryland, providing a thorough understanding of Coors' potential lawsuit options under the Restatement (Second) of Torts (1965).

1. Assault

The fact that Walker's intentional swing of the briefcase at Coors caused Coors to fear imminent harm demonstrates that assault is the first strong claim. Under the Restatement (Second) of Torts § 21 (1965), assault occurs when there is an intentional conduct or action that causes a reasonable apprehension of imminent harmful or offensive contact. For Coors to be successful in this claim, he must prove all the elements of assault based on the facts of the case. Firstly, Walker intentionally swung the briefcase at Coors. Even though the briefcase did not touch Coors, Walker's action of swinging the briefcase at him proves that Walker intended to cause harm or fear of harm to Coors. Secondly, Coors likely experienced reasonable apprehension that he could be physically harmed by the briefcase when Walker swung the briefcase him. The fact that Coors had to step back suggests that he feared imminent harm. Since Coors feared being hit by Walker's swinging briefcase, it constitutes a threat of imminent harmful or offensive contact, fulfilling the second element. Thirdly, the swinging of the briefcase at a very close distance to Coors created an immediate threat of harm and Coors could have reasonably expected the harm to happen right away, fulfilling the third element. Therefore, with all of these elements of assault based on the key facts, Coors could argue that Walker committed an intentional tort of assault as Walker's actions directly caused Coors to fear harm, even without physical contact.

2. Battery

The fact that Coors sustained an injury or harm from tripping over a low fence to avoid the briefcase, due to Walker's aggressive action of swinging the briefcase, demonstrates that battery is the second strong claim. Under that Restatement (Second) of Torts §§ 13 and 18 (1965), Battery occurs when a defendant intentionally makes harmful or offensive contact with the plaintiff without consent. For Coors to be successful in this claim, he must prove all the elements of battery based on the facts of the case. Even though Coors did not directly suffer contact from the briefcase, the harm may be due to his reaction to avoid the swing, which caused him to trip over a low fence. Firstly, Walker intentionally swung the briefcase at Coors. Even though the briefcase did not hit Coors, the fact that Waker swung the briefcase constitutes as an intent to cause harm or an offensive act. And if Walker's objective was to hit Coors, this would further fulfill the element requirement of an intent. Secondly, while the briefcase did not hit Coors, it caused Coors to avoid the briefcase by stepping back out of fear, causing him to have an injury due to tripping over a low fence. This satisfies the element of harmful or offensive contact as the

trip-and-fall and incidental injury would count as harmful acts caused by Walker's intent of swinging the briefcase. Thirdly, the facts indicate that Coors did not consent to Walker's intentional act of swinging the briefcase that caused the injury, which demonstrates the lack of consent element. Therefore, with all of these elements of battery based on the key facts, Coors could argue that Walker committed an intentional tort of battery as Coors's injury was caused by Walker's action of intentionally swinging the briefcase.

Case Example:

When Coors argues these two strong claims against Walker, he must also try to counter Walker's possible defenses such as claiming it was self-defense as Coors threatened him or that Walker did not intend to harm Coors. However, the facts show that Walker may be unsuccessful with this defense position as the evidence demonstrates Walker's intent and aggressive actions. In *Fisher v. Carrousel Motor Hotel, Inc.*, 424 S.W.2d 627 (Tex. 1967), it demonstrates assault and battery through the Restatement (Second) of Torts (1965). It correlates to Coor's claim as Walker's actions caused harm or reasonable fear of harm leading to Coors stepping back and injuring himself.

Other Claims (weak arguments):

1. Intentional Infliction of Emotional Distress (IIED)

This is a hypothetical case where Walker's actions of swinging the briefcase at Coors during an argument caused Coors significant emotional distress due to the fear of being hit. The IIED claim may apply under the Restatement (Second) of Torts § 46 (1965), but Coors must prove that Walker's action was intentional and caused emotional harm to Coors. Since there was an argument and the swinging of the briefcase, it could be seen as emotionally harmful to Coors. However, this may not be as successful as the two main intentional torts because the heated argument was not specific enough that it was due to anger, or other dangerous acts to make Coors fear Walker's behavior in combination to the swinging of the briefcase. For instance, there is no death threatening, or other acts of speech that lead to fear. Additionally, the injury was mostly related to Walker's intentional action of swinging the briefcase, not the heated argument.

2. False Imprisonment

This is a hypothetical case where Coors must prove that Walker had intent to physically or verbally prevent Coors from leaving. Since Coors was in a heated argument with Walker and Coors didn't agree to be confined, that led him to having no choice but to avoid the briefcase due to the fear of being hit. This indicates that Walker intentionally prevented Coors from leaving the confined space. Under Restatement (Second) of Torts § 35 (1965), it states that based on Coor's situation and restrictions, Walker had no legal right to stop him which means a false imprisonment may be applied. However, the facts indicate that there is not enough evidence to indicate that Walker restricted Coors and more details about the heated argument to help prove

this claim. It makes the false imprisonment claim likely to be unsuccessful than the other two stronger claims, related to the injury and the swinging of the briefcase.

Conclusion

In conclusion, Joe Coors has two strong intentional tort claims he could pursue against Johnny Walker: assault and battery. Walker's aggressive actions, including swinging the briefcase at Coors, caused Coors to fear imminent harm and to trip over a low fence, resulting in an injury. These facts support the claims of assault and battery, with Coors experiencing both fear of harm and physical injury. While other potential claims, such as intentional infliction of emotional distress and false imprisonment, may be considered, it is unlikely to succeed due to the weak supporting evidence that was demonstrated in the facts.

-Thank you.

-Victoria Lee

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Hello,

Your post thoroughly explains how Maryland's two intentional tort laws (assault and battery) are the best options for Coors' claims against Walker. You make a valid point that Coors' must prove all the elements of assault and battery to be successful in a lawsuit based on the facts of the case. Your inclusion of the Restatement (Second) of Torts and the precedent set in *Womack v. Eldridge*, emphasizing the requirement for assault and battery charges that correlates to the facts of the case.

Your post is also insightful to suggest an IIED claim for Coors, which helped me compare other options and think outside of the box for this scenario! This is likely to be a hypothetical case where Walker's actions of swinging the briefcase at Coors during an argument caused Coors significant emotional distress due to the fear of being hit. The IIED claim may apply under the Restatement (Second) of Torts § 46 (1965), but Coors must prove that Walker's action was intentional and caused emotional harm to Coors. With the facts of the case, it shows that this claim may not be as strong because there is no extreme verbal or physical harm that gave Coors IIED. However, you make a great point that this case may be successful under the *Jones v. Harris*, which underscores the importance of a higher burden of proof and demonstrating a causal connection between the defendant's actions and the plaintiff's severe emotional distress.

In *Jones v Harris*, the court recognized that even if the defendant's conduct was not physically harmful, emotional harm could still constitute a valid claim if the distress was severe and caused by the defendant's outrageous conduct. Coors would need to establish that Walker's actions—specifically swinging the briefcase—caused him significant emotional distress, even though the physical injury resulted from tripping over the fence. The IIED claim still holds potential under this precedent if the emotional harm can be substantiated. If some hypothetical facts were true that Walker's actions were due to anger, dangerous acts, death threats, or other acts of speech that lead to fear, these would make it possible for Coors to strengthen the IIED claim.

Overall, it makes sense through your insightful analysis that assault and battery claims are stronger than the IIED option, due to its more demanding evidentiary requirements.

Best regards,

Victoria

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Hello,

Your insightful analysis breaks down Joe Coors' strongest legal claims against Johnny Walker based on assault and battery! It allowed me to see a different perspective this week on why these two would be a strong argument for Coors to use in court against Walker. Your third option of IIED may also apply to Coors if there were more key facts demonstrating Walker's actions.

You have valid explanations that Coors must prove all the elements of assault and battery based on the facts of the case to be successful in court. It makes sense that under Restatement (Second) of Torts § 21 (1965), assault involves creating a fear of imminent harm, which Walker did by swinging his briefcase, and that battery is intentional harmful contact, even if indirect, which also occurred. And under Restatement (Second) of Torts § 19 (1965), it clearly defines the offensive acts that Walker did to Coors and in Restatement (Second) of Torts § 18 (1965), it demonstrates that even if Walker's swinging of the briefcase was indirect/direct hit to Coors, it is considered an offensive battery contact. Other hypothetical scenarios to strengthen Coor's claim

of Walker's offensive actions to Coors: if Walker pushes Coors with the briefcase or threatens Coors with the brief case claiming he will hit Coors. Pushing someone is intentionally considered battery as it is unwanted contact. Meanwhile, threating Coors that he will throw the briefcase at his face without physically touching Coors can also be considered as an assault. These hypothetical scenarios of Walker's actions fulfill the proof of unwanted contact and violates Coor's personal space.

When Coors uses the burden of proof to argue with these two claims against Walker, he must also try to counter Walker's possible defenses. Some examples that I could think of are claiming the briefcase swinging was an act of self-defense as Coors threatened him. You have a great point that Walker's defense would be claiming that he did not intend to use the briefcase to create apprehension or cause harm to Coors. However, even with these defenses that Walker may claim, the facts show that with these two defenses, Walker may be unsuccessful as the evidence demonstrates Walker's intent and aggressive actions. If there was a hypothetical scenario where there are other additional facts, what best defenses would Walker claim to counter Coors' argument of assault and battery?

Overall, your eloquent post demonstrates that assault and battery are the best arguments for Coors to win his lawsuit against Walker. Now, I can see why the burden of proof is significant in this case as it determines which party must convince the court that their version of events is more likely true, ultimately deciding the outcome of the case. It also makes sense that IIED could also be a potential for Coors to win, but with a much weaker argument. So far, the key facts are lacking in this third option under the Restatement (Second) of Torts (1965), which is why it would be a weaker argument than the other two.

Best regards,

Victoria

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Hello

Your thorough and straightforward analysis best explains how Joe Coors' most substantial legal claims against Johnny Walker based on the intentional torts are assault and battery! Your analysis points out valid explanations on why these two would be a strong argument for Coors to use in court against Walker. To be successful in these claims against Walker, Coors must prove all the elements of assault and battery based on the facts of the case and using the Restatement (Second) of Torts §§ 13 and 21 (1965).

As mentioned previously in the Restatement (Second) of Torts, assault happens when someone tries to indirectly or directly harm another person or makes them genuinely fear they're about to be harmed. Coors must prove Walker's assault showing that Walker had intent to threaten and cause harm, where Coors felt threatened for his safety, that the threat of harm was immediate, and that the situation implied potential harm. Walker's act of swinging his briefcase at Coors after a heated argument fits this description as Coors reacted by stepping back, showing he felt threatened, and the context suggests Walker intended to cause harm. In contrast, battery involves actual physical contact that is intentional and harmful or offensive, even if the contact isn't directly from the person's body. Since Walker intended for the harmful contact to occur and even though he didn't directly hit Coors with the briefcase, Coors could argue that Walker's action of swinging the briefcase caused him to trip and fall, resulting in injury. This would mean that the fall and subsequent injuries were the harmful contact intended by Walker's actions, fulfilling the requirements for a battery claim.

Some things that I want to mention are that when Coors argues these two strong claims against Walker, he must also try to counter Walker's possible defenses such as claiming it was self-defense as Coors threatened him or that Walker did not intend to harm Coors. However, the facts show that Walker may be unsuccessful with this defense position as the evidence demonstrates Walker's intent and aggressive actions. If there was a hypothetical scenario where it has other additional facts, what other arguments can Coors include other than assault and battery, despite it being a weaker argument than these two? For instance, in *Fisher v. Carrousel Motor Hotel, Inc.*, 424 S.W.2d 627 (Tex. 1967), it demonstrates assault and battery through the Restatement

(Second) of Torts (1965). It correlates to Coor's claim that Walker's actions caused harm or reasonable fear of harm leading to Coors stepping back and injuring himself.

Overall, your cogent post demonstrates that assault and battery are the best arguments for Coors to win his lawsuit against Walker.

Best regards,

Victoria

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Hello

Your cogent analysis is correct that Joe Coors' most substantial legal claims against Johnny Walker based on the intentional torts are assault and battery! Your analysis points out valid explanations on why these two are strong arguments for Coors to use in court against Walker. To be successful in these claims against Walker, Coors must prove all the elements of assault and battery based on the facts of the case and using the Restatement (Second) of Torts (1965).

With some further clarity on the law, in the Restatement (Second) of Torts §§ 13,18, and 21 (1965), assault happens when someone tries to indirectly or directly harm another person or makes them genuinely fear they're about to be harmed. Meanwhile, battery occurs when actual physical contact is intentionally harmful or offensive, even if the contact isn't directly from the person's body. When Coors uses these two claims against Walker, based on the burden of proof, Coors must prove all the elements of assault and battery of Walker's action.

Firstly, you have solid explanations breaking down how these two claims correlate to the facts of the case. The claim that Walker can be charged with assault is because Walker had intent to threaten and cause harm, where Coors felt threatened for his safety. Walker's act of swinging his briefcase at Coors after a heated argument fits this description as Coors reacted by stepping back,

showing he felt threatened, and the context suggests Walker intended to cause harm. Moreover, Secondly, you have valid points that since Walker intended for the harmful contract to occur, and even though he didn't directly hit Coors with the briefcase, Coors could argue that Walker's action of swinging the briefcase caused him to trip and fall, resulting in injury. This would mean that the fall and subsequent injuries were the harmful contact intended by Walker's actions, fulfilling the requirements for a battery claim.

Additionally, when Coors argues these two strong claims against Walker, he must also try to counter Walker's possible defenses such as claiming it was self-defense as Coors threatened him or that Walker did not intend to harm Coors. However, the facts show that Walker may be unsuccessful with this defense position as the evidence demonstrates Walker's intent and aggressive actions. If there was a hypothetical scenario where it has other additional facts, what other arguments can Coors include other than assault and battery? Or you could answer this question instead, what would be the best defense for Walker to counter Coors' claims if there were more significant facts?

Overall, your thorough analysis demonstrates that assault and battery are the best arguments for Coors to succeed in his lawsuit against Walker.

Best regards,

Victoria

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